

any point.

And even if some internal confusion led to the failure to forward court notices to the proper handling office of the firm, Plaintiff's attorneys give no information to establish it was the result of some excusable mistake, inadvertence, surprise or neglect, rather than simple inexcusable neglect. At best Plaintiff's MPA states "When Plaintiff did receive notice of the July 7, 2025 hearing, Plaintiff's counsel in Arizona inadvertently failed to notify Plaintiff's counsel in California of the scheduled hearing." See MPA, p. 4, lns. 14-16. Importantly, however, that statement fails to cite any supporting evidence. Likely because that statement is not made in the Supporting Declaration. See Supporting Declaration, pp. 2-3, ¶¶7-8.

The scant evidence proffered as relates to the receipt of the March 27, 2025 Order and June 16, 2025 Order fails to demonstrate that Plaintiff's and its attorneys' repeated failures appear and the resulting dismissal were the result of excusable mistake, inadvertence, surprise or neglect.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Dismissal is DENIED.
2. The Court shall enter the order after hearing.

4. 9:00 AM CASE NUMBER: L24-10643
CASE NAME: WELLS FARGO BANK, N.A. VS. JASMEEN GILL
HEARING ON SUMMARY MOTION MOTION FOR SUMMARY JUDGMENT FILED BY PLN ON 8/7/25
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Summary Judgment on August 7, 2025 (the "MSJ"). The MSJ was set for hearing on December 23, 2025.

Disposition

The Court orders as follows:

1. The parties advised the Court at the Case Management Conference (CMC) on September 24, 2025 that the matter had resolved and settlement paperwork would be submitted (the "Settlement"). However, it does not appear that any Settlement papers have been filed as yet.
2. In light of the reported Settlement, the MSJ is CONTINUED. The clerk of the Court shall give notice of the continued hearing date.